

26CV02413 LVNV Funding LLC v. Benitez

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-08-19

Motion: Motion of Plaintiff for Judgment on the Pleadings

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/26cv02413>

Source SHA-256: fc45b3356cf387d5ba7202d530427871113a3455629d0254a562d24944de0ddc

Tentative Ruling: LVNV Funding LLC v. Benitez

Case Number

26CV02413

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 08/19/2026 - 10:00

Nature of Proceedings

Motion of Plaintiff for Judgment on the Pleadings

Tentative Ruling

For Plaintiff LVNV Funding LLC: Christopher D. Mandarich, Teona Pipia, Martin Weingarten, Sarkis Karayan, Jomari Lucero, Veronika V. Rakhlina, Angela Malekian, Sukhrob Issakhanov, Mandarich Law Group, LLP

For Defendant Margarito Benitez: Self-represented

RULING

For the reasons set forth herein, the motion of Plaintiff LVNV Funding LLC for judgment on the pleadings is granted without leave to amend. Plaintiff is entitled to judgment against Defendant Margarito Benitez in the principal amount of \$15,500.17.

A [Proposed] Judgment has been submitted and the Court intends to sign it.

Background

On April 14, 2026, Plaintiff LVNV Funding LLC filed its complaint in this action asserting one cause of action for breach of contract against Defendant Margarito Benitez seeking a judgment in the principal amount of \$15,500.17.

On May 15, 2026, Defendant Benitez filed an answer. The answer admits all of the statements in the complaint are true, with no exceptions, and asserts no affirmative defenses. (Answer, ¶¶ 3b, 4.) The prayer of the answer states, "Defendant would like to settle and create a payment plan." (Answer, ¶ 6c.)

On June 1, 2026, Plaintiff filed this motion for judgment on the pleadings. No opposition or other response has been filed to this motion.

Analysis

"A party may move for judgment on the pleadings." (Code Civ. Proc., § 438, subd. (b)(1).) "The motion provided for in this section may only be made on one of the following grounds: If the moving party is a Plaintiff, that the complaint states facts sufficient to constitute a cause or causes of action against the Defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (Code Civ. Proc., § 438, subd. (c)(1)(A).) "The grounds for motion provided for in this section shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice." (Code Civ. Proc., § 438, subd. (d).)

Plaintiff's complaint asserts one cause of action for breach of contract. "A cause of action for breach of contract requires pleading of a contract, Plaintiff's performance or excuse for failure to perform, Defendant's breach and damage to Plaintiff resulting therefrom." (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.)

The complaint alleges a credit card account contract in which the Plaintiff is the assignee of the debt purchased from the original lender, U.S. Bank, N.A. (Complaint, ¶¶ 5-8, 13-14.) Plaintiff alleges that Plaintiff performed by lending credit to Defendant. (Complaint, ¶¶ 14-15.) Plaintiff alleges that Defendant breached the contract by failing to make payments as agreed. (Complaint, ¶ 16.) Plaintiff alleges that it was damaged in the principal amount of \$15,500.17. (Complaint, ¶ 17.) Plaintiff has sufficiently alleged a cause of action for breach of contract.

The answer filed by Defendant expressly admits the allegations of the complaint. (Answer, ¶ 3b.) The answer does not assert any affirmative defenses. (Answer, ¶ 4.) Defendant's answer does not state facts sufficient to constitute a defense to the complaint.

The motion for judgment on the pleadings will therefore be granted.

The motion is granted because the answer unequivocally admits the allegations of the complaint and asserts no affirmative defenses. Defendant has not opposed this motion or sought to amend the answer. There is therefore no basis for the Court to believe that leave to amend the answer is appropriate. The motion will be granted without leave to amend.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US